

DURABLE HEALTHCARE POWER OF ATTORNEY

FOR

EILEEN MARY SOMMERS

DATED _____



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**DURABLE HEALTHCARE POWER OF ATTORNEY
FOR
EILEEN MARY SOMMERS**

STATE OF LOUISIANA

PARISH OF _____

I. APPOINTMENT

BE IT KNOWN, that on the ____ day of _____, _____, before me, the undersigned Notary Public, duly commissioned and qualified, and in the presence of the witnesses hereinafter named and undersigned, personally came and appeared:

EILEEN MARY SOMMERS, an individual of the lawful age of majority, domiciled in the Parish of Orleans, State of Louisiana (SSN: XXX-XX-6490), hereinafter referred to sometimes as "Appearer",

who declared that she does by these presents make, nominate, ordain, authorize, constitute and appoint, and in her place and stead, depute and put

RONALD D. LIPTON, an individual of the full age of majority, domiciled in the Parish of Orleans, State of Louisiana (SSN: XXX-XX-_____) hereinafter sometimes referred to as "Co-Agent",

AND

BARBARA JOAN MOORE, an individual of the full age of majority, domiciled in the County of Schenectady NY, State of New York (SSN: XXX-XX-_____) hereinafter sometimes referred to as "Co-Agent",

to be her true and lawful Co-Agents and attorneys-in-fact, for the purpose of making treatment decisions for Appearer should she be comatose, incompetent, or otherwise mentally or physically unable to make such decisions for herself, and by these presents, granting, unto the said Agent, full power and authority, for and in the name of and on behalf of Appearer, to make all health care decisions regarding Appearer, except to the extent she states otherwise. Solely as illustrations, and without any intention to restrict or limit Agent's authority regarding healthcare decisions, Appearer grants Agent with full power and authority to take the following actions:

II. POWERS AND AUTHORITY

A. HEALTHCARE DECISIONS



Durable Healthcare Power of Attorney
of Eileen Mary Sommers

1. To engage, hire or dismiss any health or personal care professionals, such as physicians, psychologists, therapists, dentists, nurses, nursing home residency, medication, home health aides or other medical specialist or care providers;
2. To arrange for and authorize Appearer's admission to a hospital, nursing home, or hospice, and to arrange for convalescent care or home health care, and to revoke, withdraw, modify or change Appearer's consent to hospitalization, nursing home, or hospice admission, convalescent care, or home health care;
3. To give and withhold consent, to authorize or refuse, and to withdraw consent or authorization previously given as to any and all types of medical care, surgery, treatment tests, or other medical procedures, medication(s), intravenous medication, and feeding related to Appearer's physical or mental health;
4. To sign any and all documents, waivers, releases, or other instruments required by hospitals, physicians, or other health care providers regarding medical treatment or non-treatment;
5. To give, withhold, or withdraw consent as to an type of medical treatment or procedure; specifically, to direct and consent to the writing of any "No Code" or "Do Not Resuscitate" order by any provider of healthcare; to direct providers of healthcare to limit, withhold or withdraw emergency life support measures (including heart or lung resuscitation and mechanical ventilation) to the extent consistent with my Living Will; and to sign documents entitled "Refusal of Treatment" or "Leaving Hospital Against Medical Advice" as well as any necessary waivers of or release from liability, consents, or any other documents or instruments required by a hospital, physician, or any provider of health care to implements my wishes regarding acceptance or refusal of medical treatment. However, Agent shall have no authority to make decisions about life-sustaining procedures that are inconsistent with Appearer's Living Will;
6. In the event dementia, Alzheimer's or other such conditions affect my mental capacity which makes Appearer unable to make health care decisions, Appearer grants complete and uncontrolled discretion and decision making related to care to the Agent named herein to direct caregivers as to the manner and extent of the care to be provided to Appearer. By way of illustration, but not limitation, said authority shall apply to the manner and extent of care Appearer may receive in any Hospice, nursing home, retirement center, adult or assisted living, chronic care, hospital or similar setting;
7. To authorize any medical attention and treatments, which may be required, recommended or desirable in connection with the mental or physical health and welfare of Appearer, including particularly but not exclusively the power to authorize surgery, including particularly but not exclusively major or minor surgery, inoculations, injections, skeletal manipulations, and any other acts, procedures, or treatments, for Appearer's physical and mental health or for any other circumstance which may



require medical attention; and to authorize test procedures for diagnosis and treatment of Appearer's mental and physical health and welfare;

8. To perform all acts reasonably necessary, including without limitation, commissioning mental exams and treatment for Appearer's mental health, obtaining affidavits as to Appearer's physical and mental health from licensed physicians without the necessity of court order;
9. To consent to and arrange for the administration of pain relieving drugs of any kind, or an surgical or medical procedures calculated solely to relieve Appearer's pain, even though such drugs or procedures may lead to permanent, physical damage or addiction, or hasten the moment of, but not intentionally cause, Appearer's death;
10. To the fullest extent permitted under Louisiana or other applicable law, to direct the withholding or withdrawal of life-sustaining procedures in the event that Appearer be diagnosed with an incurable injury, disease, or illness or be in a continual profound comatose state with no reasonable chance of recovery, certified to be a terminal and irreversible condition by two (2) physicians who have personally examined Appearer, one of whom shall be the attending physician of Appearer, and the physicians determine that Appearer's death will occur whether or not life-sustaining procedures are utilized and where the application of life-sustaining procedures would serve only to prolong artificially the dying process. If I am suffering from such a condition described above, if my Agent, in his or her sole discretion, deems it appropriate, I authorize my Agent to instruct my physician to keep me alive by all means necessary. However, if by separate Act of Declaration pursuant to La. R.S. 40:1151.2, as amended, Appearer has declared that she has certain wishes with respect to the withholding or withdrawing of life-sustaining procedures, it is Appearer's intention that in the exercise of the authority granted herein, the Agent honor the directions of the Declaration as the final expression of Appearer's legal right to refuse medical or surgical treatment.

B. RELEASE OF MEDICAL RECORDS

1. Appearer acknowledges that HIPAA provisions prohibit healthcare providers from providing Protected Health Information ("PHI") to third parties except with the written consent of the patient. Notwithstanding the provisions of HIPAA, Appearer hereby instructs, authorizes, directs and empowers any healthcare provider to provide any PHI to Agent held or maintained by any such health care provider (as identified in 45 C.F.R. Section 164.501 and regulated by the Standards for Privacy of Individually Identifiable Health Information found in 65 Fed. Reg. 82462 and otherwise covered by the Health Insurance Portability and Accountability Act of 1996 a/k/a HIPAA);
2. All parties with whom Agent may discuss or request information regarding Appearer's health or personal affairs are hereby authorized and directed to provide such information to Agent, without limitation, and are released from any legal liability to Appearer, her estate, her heirs, successors, or assigns for, in relation to complying with



the request of Agent. Appearer authorizes in advance all physicians, psychiatrists, psychologists, dentists, nurses, therapists or other health care professionals who have treated her to discuss and release to Agent all information regarding Appearer's personal affairs or physical or mental health, including medical and hospital records. Appearer hereby waives all privileges that may be applicable to communicating such information to Agent.

C. PAYMENT OF MEDICAL EXPENSES

1. To expend estate resources in the effectuation of the objects and purposes of this Healthcare Power of Attorney and, as set forth herein, Agent shall be entitled to reimbursement for all reasonable expenses actually incurred and paid by Agent, but Agent shall not be entitled to compensation for the services rendered hereunder;
2. If Appearer has granted to another person a Power of Attorney to manage Financial affairs or named another person Trustee of a revocable trust established by Appearer for Appearer's benefit, the Agent may direct said other Agent or Trustee to pay from Appearer's resources and estate the obligations incurred by Agent under this Healthcare Power of Attorney even though such payments may deplete Appearers assets or the assets of any trust. The Agent is entitled to reimbursement even if such other Agent or Trustee would not have consented to or incurred the obligations had such other Agent or Trustee held an equivalent power under a Healthcare Power of Attorney executed by Appearer.

D. FUNERAL ARRANGEMENTS

1. In addition to the authorities granted to Agent in Sections A, B and C, above, Appearer hereby grants Agent the full power and authority to make all arrangements for Appearer's funeral and disposition of remains, whether by burial, cremation or other lawful means.

E. ORGAN DONATION

1. To make anatomical gifts on my behalf for the limited purpose of transplantation, which shall take effect upon my death, to any purpose or people Agent may choose. I authorize my Agent to execute such papers and do such acts as shall be necessary, appropriate, incidental, or convenient in connection with such anatomical gifts.
2. To the extent my body may be used by medical research, I authorize my Agent to donate my body, after any usable organs have been removed, for such purposes, in a manner my Agent deems appropriate.
3. I authorize my Agent to execute such papers and do such acts as shall be necessary, appropriate, incidental, or convenient in connection with such gifts.



4. In connection with any such action or authorization performed by said Agent, Appearer does agree to hold said Agent harmless and indemnify the said Agent against any loss or damage said Agent might sustain as a result of having exercised the powers and authorities granted herein.

III. GENERAL PROVISIONS

A. INTERPRETATION OF TERMS.

1. If there are more than one Agent, the Co-Agents shall act jointly in all matters unless it is specifically stipulated herein to the contrary.
2. Whenever the singular is used in this Act of Procuration and Mandate, it shall also include the plural, and the term "Appearer" or "Appearers" shall apply to each Appearer and each Appearer individually, if there is more than one.
3. The masculine shall include the feminine and the feminine the masculine, and the neuter shall apply to both.

IV. EFFECTIVE DATE / DURABILITY

A. EFFECTIVE DATE.

This Act of Procuration and Mandate in favor of **RONALD D. LIPTON** and **BARBARA JOAN MOORE** shall become effective immediately upon the date signed by Appearer, and shall remain effective until the earlier of the death of Appearer or until it is revoked. In the absence of actual knowledge of death or revocation on the part of the parties concerned, dealing on the faith of this Act of Procuration and Mandate, it shall not be revoked in any fashion, even by Appearer's death, until notice of such death or revocation is placed of record in the office of the Clerk of Court for Orleans Parish, Louisiana. The Act of Revocation shall be in writing, signed by Appearer, in the form of an authentic act or an act under private signature, duly acknowledged.

B. RATIFICATION AND INDEMNITY.

Appearer does hereby ratify and confirm all and whatsoever said Agent, or said Agent's Substitute, shall lawfully do, or cause to be done by virtue of this act of Procuration and Mandate, and agrees to save, protect, defend, indemnify and hold said Agent, and said Agent's Substitute, harmless for all actions taken on Appearer's behalf, including any acts or omissions which may be negligent, *excluding* only willful misconduct.

C. ALTERNATE OR SUBSTITUTE AGENT.

In the event that **RONALD D. LIPTON** and **BARBARA JOAN MOORE** are unable or unwilling



to perform or continue to perform as my Co-Agent and lawful attorney-in-fact, then I nominate, ordain, authorize, constitute and appoint, in their place and stead, **SOPHIA SOMMERS TILITZ**, domiciled in the County of _____, State of Maine (SSN: XXX-XX-_____) and **EMILY P ZASOWSKI**, domiciled in the County of _____, State of Massachusetts (SSN: XXX-XX-_____) as my true and lawful Substitute Co-Agents and attorney-in-fact with full power and authority to perform, conduct, manage and transact all and singular, the affairs, business, concerns and matters of Appearer, of whatever nature or kind, without any exception or reservation whatever, including, but not limited to, each of the powers specifically named above which have been granted to my original Agent.

[REMAINDER OF PAGE LEFT BLANK INTENTIONALLY]

[SIGNATURES ON FOLLOWING PAGES]



THUS DONE AND PASSED on this ____ day of _____, _____, in the presence of the undersigned competent witnesses, who have hereunto signed their names with the Appearer and me, Notary Public, after due reading of the whole.

WITNESSES:

PRINTED NAME: _____

EILEEN MARY SOMMERS, *Appearer*
525 Arabella Street
New Orleans, LA 70115

PRINTED NAME: _____

ACCEPTED BY:

RONALD D. LIPTON, *Co-Agent*
525 Arabella Street
New Orleans, LA 70115

NOTARY PUBLIC
Printed Name: _____
Notary / Bar Roll Number: _____
_____, _____ County/Parish, _____
My Commission expires: _____



THUS DONE AND PASSED on this ____ day of _____, _____, in the presence of the undersigned competent witnesses, who have hereunto signed their names with the Agent and me, Notary Public, after due reading of the whole.

WITNESSES:

ACCEPTED BY:

PRINTED NAME: _____

BARBARA JOAN MOORE, *Co-Agent*
120 Acorn Drive

PRINTED NAME: _____

NOTARY PUBLIC
Printed Name: _____
Notary / Bar Roll Number: _____
_____, _____ County/Parish, _____
My Commission expires: _____



THUS DONE AND PASSED on this ____ day of _____, _____, in the presence of the undersigned competent witnesses, who have hereunto signed their names with the Agent and me, Notary Public, after due reading of the whole.

WITNESSES:

ACCEPTED BY:

PRINTED NAME: _____

SOPHIA SOMMERS TILITZ, *Co-Agent*
19 Ogunquit Road
South Berwick, ME 03908

PRINTED NAME: _____

NOTARY PUBLIC
Printed Name: _____
Notary / Bar Roll Number: _____
_____, _____ County/Parish, _____
My Commission expires: _____



THUS DONE AND PASSED on this ____ day of _____, _____, in the presence of the undersigned competent witnesses, who have hereunto signed their names with the Agent and me, Notary Public, after due reading of the whole.

WITNESSES:

ACCEPTED BY:

PRINTED NAME: _____

EMILY P ZASOWSKI, *Co-Agent*
17 Fells Rd
Stoneham, MA 02180

PRINTED NAME: _____

NOTARY PUBLIC
Printed Name: _____
Notary / Bar Roll Number: _____
_____, _____ County/Parish, _____
My Commission expires: _____

